AIPAF

AFRICAN INSTITUTE OF PROJECT ASSURANCE AND FORENSICS

CONSTITUTION

THE GOVERNING INSTRUMENT OF THE INSTITUTE

EDITION 2026

Adopted for incorporation as a company limited by guarantee under the Companies Act, 2019 (Act 992) of the Republic of Ghana

A PAN-AFRICAN PROFESSIONAL BODY

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PREAMBLE

We, the founding members of the African Institute of Project Assurance and Forensics, resolved to establish a professional body to define, uphold, and advance the standards of project assurance, project forensics, and sound project delivery across Africa, and to certify the practitioners who meet them.

This Constitution is adopted as the governing instrument of the Institute. It states the objects for which the Institute exists, the terms on which persons become and remain members, the standards to which members are held, and the manner in which the Institute is governed and held to account. It is drafted so that the Institute may be incorporated as a company limited by guarantee under the Companies Act, 2019 (Act 992) of the Republic of Ghana, and read together with the AIPAF Organisational Profile and the AIPAF Credential Specification, which it takes precedence over in the event of any inconsistency.



PART A

Preliminary

A

ARTICLE 1
Name and Status

1.1 The name of the body is the African Institute of Project Assurance and Forensics, referred to in this Constitution as the Institute.

1.2 The Institute is a professional body established to be incorporated as a company limited by guarantee under the Companies Act, 2019 (Act 992) of the Republic of Ghana, not having a share capital.

1.3 The liability of the members is limited. Every member undertakes to contribute to the assets of the Institute, in the event of its being wound up while they are a member or within one year after they cease to be a member, a sum not exceeding fifty Ghana cedis (GH₵ 50) for payment of the debts and liabilities of the Institute contracted before they ceased to be a member, and of the costs of winding up.

1.4 The Institute is Pan-African. It may establish chapters and conduct its activities in any jurisdiction on the continent, subject to the law of that jurisdiction.

1.5 The Institute is autonomous and non-partisan. It is not affiliated to any political party or government, and does not pursue any political object.

ARTICLE 2
Interpretation

2.1 In this Constitution, unless the context otherwise requires:

(a) the Assembly means the members of the Institute in general meeting;

(b) the Council means the Governing Council of the Institute;

(c) Chief Executive means the officer appointed under Article 23, who may also hold the office of Registrar;

(d) the Code means the Code of Professional Conduct adopted under Article 14;

(e) designation means a Certified or Chartered professional designation conferred by the Institute;

(f) member means a person admitted to any grade of membership under Article 7, and members means such persons collectively;

(g) ordinary resolution means a resolution passed by a simple majority of the votes cast by members entitled to vote;

(h) special resolution means a resolution passed by not less than three-quarters of the votes cast by members entitled to vote, of which due notice has been given;

(i) the Register means the register of members maintained under Article 11;

(j) writing includes electronic communication, and signed includes electronic signature where the Council so permits.

2.2 Words importing the singular include the plural and the reverse, and words importing one gender include all genders.

2.3 Headings are for convenience only and do not affect interpretation.

ARTICLE 3
Registered Office

3.1 The registered office of the Institute shall be situated in the Republic of Ghana, at such place as the Council may from time to time determine.

3.2 The Institute may establish and maintain other offices and chapters, within Ghana and elsewhere on the continent, as the Council thinks fit.

ARTICLE 4
Objects

The objects for which the Institute is established are:

(a) to define and maintain the body of knowledge, standards of competence, and code of professional conduct for project delivery, assurance, and forensics in Africa;

(b) to certify individuals as competent to practise, through examined and evidence-based credentials, and to maintain a public register of those certified;

(c) to provide education, training, and continuing professional development in support of those credentials;

(d) to advance research into the causes of project failure and the methods of delivery, assurance, and forensic investigation, and to publish findings that improve practice;

(e) to promote the adoption of independent project assurance by governments, financiers, and project owners across the continent;

(f) to provide a recognised and impartial source of expertise for the investigation and resolution of project failures and disputes;

(g) to uphold the standing of the profession by disciplining members who fall below its standards of competence or conduct;

(h) to represent the profession in dialogue with governments, regulators, professional bodies, and international institutions.

ARTICLE 5
Powers

In furtherance of the objects, but not otherwise, the Institute may:

(a) set, conduct, and moderate examinations and assessments, and confer, withhold, suspend, and withdraw designations;

(b) admit, grade, and remove members, and charge subscriptions, examination fees, and other fees;

(c) employ and engage staff, advisers, and contractors, and pay reasonable remuneration for services rendered;

(d) acquire, hold, manage, and dispose of property, and invest the funds of the Institute;

(e) borrow and raise money, and secure the same, with the authority of the Council;

(f) publish, and acquire and protect intellectual property;

(g) establish chapters, committees, and subsidiary structures, and affiliate with or join other bodies pursuing compatible objects;

(h) receive grants, donations, and sponsorship, subject to Article 6 and to the independence of the Institute; and

(i) do all such other lawful things as are incidental or conducive to the attainment of the objects.

ARTICLE 6

Not-for-Profit Character

6.1 The income and property of the Institute shall be applied solely towards the promotion of its objects. No portion shall be paid or transferred, directly or indirectly, by way of dividend, bonus, or otherwise by way of profit, to the members of the Institute.

6.2 Nothing in clause 6.1 prevents the payment in good faith of reasonable remuneration to any member, officer, or servant of the Institute for services actually rendered, or the reimbursement of proper expenses.

6.3 No member of the Council shall be appointed to any salaried office of the Institute, or receive remuneration for acting as a member of the Council, save for the reimbursement of proper expenses.

PART B

Membership

B

ARTICLE 7
Grades of Membership

7.1 There shall be the following grades of membership:

(a) Fellow (designatory letters FIPAF): certified members of distinguished standing and sustained contribution;

(b) Member (designatory letters MIPAF): fully certified practitioners holding a designation of the Institute;

(c) Associate (designatory letters AIPAF): practitioners who have passed the shared foundation and are completing certification;

(d) Affiliate: professionals in cognate fields who support the objects without seeking certification;

(e) Student: persons enrolled on a route towards certification.

7.2 The Council may, by regulation, establish the criteria for each grade, create additional grades including Honorary Fellowship, and prescribe the conditions of advancement between grades, consistent with this Constitution and the Credential Specification.

7.3 Only Fellows and Members, being certified and in good standing, are voting members entitled to vote at general meetings. Associate members have such limited voting rights as the Council may prescribe. Affiliate and Student grades do not carry the right to vote.

ARTICLE 8
Admission to Membership

8.1 A person qualifies for admission or advancement to a certified grade by satisfying the examination and experience requirements of the relevant credential, as set out in the Credential Specification and administered under this Constitution.

8.2 Applications are determined by the Membership and Credentials Committee on behalf of the Council. Admission takes effect on entry in the Register.

8.3 Every applicant undertakes, as a condition of admission, to be bound by this Constitution, the Code, and the regulations of the Institute.

ARTICLE 9
Rights and Obligations of Members

9.1 A member in good standing is entitled, according to their grade, to use the corresponding designatory letters, to hold and practise under any designation conferred on them, to participate in the affairs of the Institute, and, if a voting member, to vote at general meetings.

9.2 Every member shall abide by this Constitution and the Code, maintain the continuing professional development required of their grade, pay the subscriptions and fees due, and do nothing to bring the Institute or the profession into disrepute.

9.3 A member is in good standing when they have paid all sums due, are not under suspension, and are compliant with the continuing professional development requirement.

ARTICLE 10
Subscriptions and Fees

10.1 The Council shall set the annual subscription and other fees for each grade, and the dates on which they fall due.

10.2 A member whose subscription remains unpaid for the period prescribed by the Council, after due notice, may be suspended and, on continued default, removed from membership, without prejudice to the recovery of sums owed.

ARTICLE 11
Register of Members

11.1 The Registrar shall maintain a Register recording, for each certified member, their name, grade, designation held, and standing.

11.2 The Register, so far as it records certified members and the designations they hold, is a public record, available for inspection in the manner the Council determines, subject to the law on data protection.

11.3 A member shall notify the Institute of any change in the particulars entered against their name.

ARTICLE 12
Designations and Post-Nominals

12.1 The Institute confers the Certified designations of the Institute, being Certified Project Management Practitioner (CPMP), Certified Project Assurance Practitioner (CPAP), and Certified Project Forensic Examiner (CPFE), on members who satisfy the requirements of the relevant credential.

12.2 The Institute may confer the corresponding Chartered designations only once it holds the necessary chartering authority, whether by statutory recognition, an Act, or an equivalent instrument. Until then it certifies, and does not charter.

12.3 Only a member in good standing may use a designation or designatory letters conferred on them. Use of any designation of the Institute by a person not entitled to it, or after entitlement has ceased, is prohibited and is a matter the Institute may pursue.

12.4 A designation is held for so long as the member maintains the conditions on which it was conferred, and is withdrawn on removal from the Register or on a disciplinary finding to that effect.

ARTICLE 13
Resignation, Suspension and Cessation

13.1 A member may resign by written notice to the Institute, remaining liable for sums due to the date of resignation.

13.2 Membership ceases on resignation, on removal for non-payment under Article 10, on expulsion under Article 15, or on death.

13.3 On cessation of membership, all rights to use the designations and designatory letters of the Institute cease immediately.

PART C

Professional Standards and Discipline

C

ARTICLE 14
Code of Professional Conduct

14.1 The Council shall adopt, publish, and maintain a Code of Professional Conduct, which binds every member.

14.2 The Code shall give effect to the duties of independence, evidence, integrity, competence, and the public interest, and to the separation between the delivery of projects and their independent scrutiny.

ARTICLE 15
Disciplinary Process

15.1 Allegations that a member has breached the Code or fallen below the standards of the Institute are investigated and determined by the Professional Conduct and Disciplinary Committee, which acts independently of the Council in its decisions.

15.2 No member shall be sanctioned without being informed of the allegation, given a fair opportunity to be heard, and permitted to be accompanied or represented. The standard of proof is the balance of probabilities.

15.3 On a finding upheld, the Committee may impose one or more of the following sanctions, in proportion to the matter:

(a) advice or a formal reprimand;

(b) conditions or restrictions on practice or membership;

(c) suspension of membership or of a designation for a stated period;

(d) expulsion from membership and removal from the Register.

15.4 The outcome of a disciplinary matter is, subject to fairness to the individual and to the law, a matter of record.

ARTICLE 16
Appeals

16.1 A member against whom a disciplinary finding or sanction is made may appeal to an Appeals Panel, constituted independently of the Council and of the Professional Conduct and Disciplinary Committee.

16.2 An appeal shall be brought within the period, and on the grounds, prescribed by regulation. The decision of the Appeals Panel is final within the Institute.

PART D

Governance

D

ARTICLE 17
General Assembly and General Meetings

17.1 The members in general meeting, constituting the Assembly, are the supreme authority of the Institute.

17.2 The Institute shall hold an annual general meeting each year, at which the Council presents its report and the audited accounts, members elect the Council and appoint the auditor, and other business of which notice has been given is transacted.

17.3 An extraordinary general meeting may be convened by the Council at any time, and shall be convened on the written requisition of not fewer than twenty voting members or five per cent of the voting membership, whichever is the greater.

17.4 Not fewer than twenty-one clear days' notice shall be given of a general meeting, stating the business to be transacted. A meeting may be held at shorter notice with the consent of the members required by law.

ARTICLE 18
Proceedings at General Meetings

18.1 The quorum for a general meeting is twenty-five voting members present in person or by proxy, or ten per cent of the voting membership, whichever is the greater.

18.2 The President, or in their absence the Vice-President, chairs a general meeting. In the absence of both, the members present choose a chair from among the voting members.

18.3 Every voting member has one vote. A resolution is decided on a show of hands unless a poll is demanded, and in the case of an equality of votes the chair has a second or casting vote.

18.4 A voting member may appoint a proxy, who need not be a member, to attend and vote on their behalf, in the form and within the time the Council prescribes.

18.5 A special resolution is required to amend this Constitution and to dissolve the Institute. All other questions are decided by ordinary resolution unless this Constitution provides otherwise.

18.6 Minutes of every general meeting shall be kept.

ARTICLE 19
The Governing Council

19.1 The Institute is governed by a Governing Council, which directs its strategy and affairs and is accountable to the Assembly.

19.2 The Council comprises the President, the Vice-President, the Honorary Treasurer, the Immediate Past President, and not more than eight other members elected by the Assembly. The Chief Executive attends as an ex officio member without a vote.

19.3 Only Fellows and Members in good standing are eligible for election to the Council. The composition of the Council shall so far as practicable reflect a balance across the delivery, assurance, and forensic domains and a spread of geography across the continent.

19.4 An elected member of the Council holds office for a term of three years and may serve not more than two consecutive terms. One-third of the elected members, or the number nearest to one-third, retire by rotation at each annual general meeting, the longest in office retiring first.

19.5 The Council may co-opt a member to fill a casual vacancy or to secure a needed competence, until the next annual general meeting, provided that co-opted members do not exceed one-quarter of the Council.

19.6 The Council may exercise all the powers of the Institute that are not by this Constitution or by law reserved to the Assembly. Members of the Council owe the Institute the duties of good faith, care, and diligence, and shall act only in furtherance of its objects.

ARTICLE 20
Proceedings of the Council

20.1 The Council shall meet not less than four times a year. Meetings may be held in person or by electronic means that allow all participating to communicate.

20.2 The quorum for a meeting of the Council is a majority of its voting members.

20.3 Questions are decided by a majority of votes. The chair of the meeting has a second or casting vote in the case of equality.

20.4 A written resolution signed or assented to by all voting members of the Council is as valid as one passed at a meeting.

20.5 Minutes of every meeting of the Council shall be kept.

ARTICLE 21
Office Holders

21.1 The office holders of the Institute are the President, the Vice-President, and the Honorary Treasurer, each elected by the Assembly, together with the Immediate Past President.

21.2 The President holds office for a term of two years, chairs the Council and the Assembly, and may serve one further term. The Vice-President supports and deputises for the President.

21.3 The Honorary Treasurer oversees the financial affairs of the Institute and reports on them to the Council and the Assembly.

ARTICLE 22
Standing Committees

22.1 The Council shall establish and maintain the following standing committees, and settle their terms of reference:

(a) the Standards and Ethics Committee;

(b) the Education and Examinations Committee;

(c) the Membership and Credentials Committee;

(d) the Professional Conduct and Disciplinary Committee;

(e) the Research and Publications Committee;

(f) the Finance and Audit Committee.

22.2 The functions of setting standards, certifying against them, and adjudicating breaches shall be kept in distinct committees. The Professional Conduct and Disciplinary Committee, and any Appeals Panel, exercise their decisions independently of the Council.

22.3 Each committee reports to the Council, which remains accountable for the exercise of the functions it delegates.

ARTICLE 23
Secretariat, Chief Executive and Registrar

23.1 The Council shall appoint a Chief Executive, who may also serve as Registrar, to lead the Secretariat and conduct the day-to-day operations of the Institute.

23.2 The Secretariat administers examinations, the Register, education, and continuing professional development, services the committees, and manages operations. It executes the standards of the Institute and does not set them.

ARTICLE 24
Continental Chapters

24.1 The Council may establish chapters in any country or region to deliver the work of the Institute locally, within one continental standard.

24.2 A chapter operates under rules approved by the Council and consistent with this Constitution. Certification, the Register, and the Code remain central to the Institute and are not devolved.

ARTICLE 25
Independence and Conflicts of Interest

25.1 The independence of the Institute is fundamental. The separation of powers among those who set standards, certify against them, and discipline breaches shall be maintained at all times.

25.2 A member of the Council or of any committee shall declare any interest in a matter under consideration, and shall withdraw from its consideration and decision, in accordance with a conflict-of-interest policy published by the Council. The Institute shall keep a register of interests.

25.3 No member shall provide independent assurance or forensic services in respect of a project which that member has delivered, or in which that member holds a delivery interest. This separation is given effect by the Code.

PART E

Finance and Administration

E

ARTICLE 26
Funds and Financial Year

26.1 The funds of the Institute derive from subscriptions, examination and certification fees, education and publication, grants, donations, and such other lawful sources as are consistent with its independence.

26.2 The financial year of the Institute ends on such date as the Council determines.

ARTICLE 27
Accounts and Audit

27.1 The Institute shall keep proper books of account and shall prepare financial statements for each financial year in accordance with law.

27.2 The Assembly shall appoint an independent auditor at each annual general meeting. The audited financial statements shall be presented to the Assembly.

ARTICLE 28
Seal, Property and Borrowing

28.1 The Institute may have a common seal, the use of which shall be authorised by the Council and attested as the Council directs.

28.2 The Institute may acquire, hold, and dispose of property, and may borrow and give security, with the authority of the Council and subject to this Constitution.

ARTICLE 29
Indemnity and Liability

29.1 Every member of the Council, of a committee, and every officer of the Institute is indemnified out of the assets of the Institute against liability properly incurred in the discharge of their duties, except liability arising from their own fraud, dishonesty, or wilful default.

29.2 The Institute may purchase and maintain insurance in respect of such persons and liabilities.

ARTICLE 30
Records and Notices

30.1 The Institute shall keep minutes, the Register, and such other records as this Constitution and the law require.

30.2 A notice under this Constitution may be given in writing, including by electronic communication to an address provided by the member, and is deemed served at the time the law provides.

PART F

General

F

ARTICLE 31
Amendment of the Constitution

31.1 This Constitution may be amended only by special resolution of the Assembly, of which notice setting out the proposed amendment has been given.

31.2 No amendment shall be made to Article 4 (Objects), Article 6 (Not-for-Profit Character), or Article 32 (Dissolution) that would cause the Institute to cease to be a body established for its objects and not for profit.

ARTICLE 32
Dissolution and Winding Up

32.1 The Institute may be dissolved by special resolution of the Assembly.

32.2 If on dissolution there remains, after satisfaction of all debts and liabilities, any property of the Institute, it shall not be paid to or distributed among the members, but shall be transferred to one or more bodies having objects similar to those of the Institute and subject to a like restriction on distribution, chosen by the Assembly at or before dissolution.

ARTICLE 33
Dispute Resolution and Governing Law

33.1 A dispute between a member and the Institute, or between members in their capacity as such, arising under this Constitution, shall so far as possible be resolved through the internal processes of the Institute and, failing resolution, through mediation and then arbitration in Ghana.

33.2 This Constitution is governed by, and shall be construed in accordance with, the laws of the Republic of Ghana.

ARTICLE 34
Commencement and Transitional Provisions

34.1 This Constitution takes effect on its adoption by the founding members and, on incorporation, as the constitution of the incorporated Institute.

34.2 The founding members shall constitute the first Council and appoint the first office holders, who shall hold office until the first annual general meeting, at which elections shall be held under this Constitution.

34.3 Acts done and arrangements made in the establishment of the Institute before the adoption of this Constitution are ratified and continued so far as consistent with it.

Adopted by the founding members of the

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